SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 5183 of 2020 (YEAR: 2019)

CORAM: R. BANUMATHI, A.S. BOPANNA

Union of India
... Appellant(s) / Petitioner(s)
Versus
C. Girija
... Respondent(s)

Acts Referred:	Constitution of India
Sections:	Article 14, Article 16

JUDICIAL HEADNOTE & SUMMARY

Held that mere inclusion of a candidate in a select list does not confer an indefeasible right to appointment if the employer decides for bona fide reasons not to fill vacancies.

RATIO DECIDENDI

The Court held that: Held that mere inclusion of a candidate in a select list does not confer an indefeasible right to appointment if the employer decides for bona fide reasons not to fill vacancies. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Union of India v. C. Girija (Civil Appeal No. 5183 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, particularly Article 14, Article 16. Held that mere inclusion of a candidate in a select list does not confer an indefeasible right to appointment if the employer decides for bona fide reasons not to fill vacancies.

OPERATIVE ORDER

ORDER: Decided